

August 3, 2025

TO: HON. EDGAR S. CABANLAS
CHAIRPERSON, COMMITTEE ON SUBDIVISION,
HOUSING DEVELOPMENT & LANDED ESTATE

HON. GEORGE CHRISTOPHER Q. GOKING
VICE-CHAIRPERSON, COMMITTEE ON SUBDIVISION,
HOUSING DEVELOPMENT & LANDED ESTATE

SUBJECT: COMPLAINT OF FOREVER HOMES LUMBIA SUBDIVISION VS JOHNDORF-PROHOMES REGARDING ACCESS ROAD

Dear Sir!

We are again writing to your office, not only to further request for assistance related to our road right-of-way or access road in Forever Homes Lumbia (FHL) Subdivision, Barangay Lumbia, but also to update you on what eventually followed and transpired during the supposed negotiations and resolution talks already made between multiple parties concerned. We are also formally filing a complaint against Johndorf Ventures / ProHomes, whom until now, has not resolved and committed to providing a decent access road for FHL homeowners in the last six (6) years already.

For a quick background, we have first submitted to you a letter dated October 3, 2025 about all these, and are grateful that last January 2026, we were able to discuss all other details, before the Special Session Meeting of the Committee on Subdivision, Housing Development and Landed Estate, including the Compromised Agreement we have all initially mustered. That CA should have served as a guide for us to eventually create and sign a Memorandum of Agreement (MOA) covering the pavement/concreting of the 800+ meter access road. In the CA, JVC-Prohomes agreed to shoulder all design and concreting costs of that road which is privately owned by CMRC, and after which upon completion, the latter will execute an SPA for the donation of that land and be turned over to the LGU, followed by FHL-HOA executing a waiver of liabilities and affidavit of undertaking, releasing JVC-Prohomes from any FHL related obligations and maintenance.

Unfortunately, such CA and consequent MOA process and negotiations recently have come into a deadlock, leaving all parties at an impasse. JVC-Prohomes is asserting that all transfer taxes and donation related fees must be shouldered by the land-owner CMRC, including FHL-HOA. This was contrary to what JVC-Prohomes first agreed to, during our first conciliation meeting, that they will pay for such taxes. We also continue to argue that based on their original development contract between JVC-PROHOMES and CMRC, they agreed on an ex-deal where CMRC will provide the access road (even purchased additional lots to widen the road to 10 meters as required), free of cost to JVC-Prohomes, in exchange for developing & pavement of such road and eventually processing the turn-over donation fees all-in. All FHL Homeowners were also promised by the developer JVC-Prohomes, thru their marketing officers, agents and brokers, that such access road will be fully concreted in the soonest possible time, inspiring us to buy lots and properties within the subdivision. Apparently, such conflict about their contract details have now resulted in such stalemate.

It is for such desperate reasons that we have sought your support as we request for the following Sir:

- Possible immediate repair & maintenance by your City Engineering Team, with gravel hauls, back-hoe, motor graders, roller compactors. The rainy season has worsened the conditions of our access road and all homeowners continue to be at great safety risks through this muddied, pot-holed and rough access road.
- An audience and discussion with you both in the Committee Team, possibly including Mayor Klarex Uy, and to be attended also by JVC and Prohomes Owners, executives, and managers. We believe that with your presence and mediation, JVC-Prohomes will give us a sense of urgency and serious solutions to all concerns.
- Intervene towards determining who should be the rightful party to pay for the donation / transfer related taxes.
- If no clear commitment or definite solution are made, we ask that any existing development permits for any new / on-going housing projects under JVC-Prohomes within CDO City and/or Barangay Lumbia will be suspended.

In the service of God, the community, and the Filipino people,


MR. LEO VINCENT PADLA CADETE
President, FHL-BOD / Homeowners Association
Forever Homes Lumbia Subdivision
Barangay Lumbia, Cagayan de Oro City
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OFFICE OF THE CITY COUNCIL
City of Cagayan de Oro

RECEIVED

Date: AUG 13 2026

Time: 2:11

By:  JUSTIN KYLE P. ASNE
Local Legislative Staff Officer I